

statute of limitations.

The demurrer to the complaint on the grounds of the statute of limitations is **SUSTAINED**.

Conclusion and Ruling

The general demurrer to the complaint based on the statute of limitations is **SUSTAINED, WITH LEAVE TO AMEND**. It is not clear to the Court whether Plaintiff will be able to amend to avoid the statute of limitations under the circumstances, but the Court will allow Plaintiff a chance to try to do so. Though the Court does not reach the other grounds for demurrer in light of this ruling, leave to amend includes leave to address any other matters subject to the challenges raised in the demurrer if Plaintiff chooses to do so in addition to alleging additional facts to address the statute of limitations.

For purposes of filing an amended pleading, any amended pleading must be titled as the **Second Amended Complaint** to avoid confusion in the Court's register of action in light of the "first amended complaint" on file. The Court also expects compliance with Code of Civil Procedure section 471.5 which requires service of an amended complaint "upon the defendants affected thereby." (Code Civ. Proc. § 471.5(a).) Based on this ruling, and concurrent rulings sustaining demurrers by the other defendants, any amended complaint must be served on all defendants.

15. 9:00 AM CASE NUMBER: C25-02273
CASE NAME: LINDA WILLIAMS VS. SAN RAMON REGIONAL MEDICAL CENTER
***HEARING ON MOTION IN RE: STRIKE 1ST AMENDED COMPLAINT**
FILED BY: MALANI, DR. NARENDRA K
TENTATIVE RULING:

Before the Court is a motion to strike portions of the prayer in the first amended complaint by defendant Dr. Narendra K. Malani. Based on the Court's concurrent ruling sustaining Dr. Malani's demurrer, the motion to strike is **DENIED AS MOOT**.

16. 9:00 AM CASE NUMBER: C25-02273
CASE NAME: LINDA WILLIAMS VS. SAN RAMON REGIONAL MEDICAL CENTER
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: TENET HEALTHCARE CORPORATION
TENTATIVE RULING:

Before the Court is a demurrer to the first amended complaint by defendant Tenet Healthcare Corporation. For the reasons set forth, and on the grounds and subject to the terms and provisions of this ruling, the demurrer is **SUSTAINED, WITH LEAVE TO AMEND**.

Background

Plaintiff Linda H. Williams, in pro per, filed her complaint initiating this action on August 7, 2025. The complaint names as defendants San Ramon Regional Medical Center, Tenet Healthcare Corporation, Dr. Narendra K. Malani, Dr. Joseph Toscano, Judith Grove, RN, and Rene Ochoa, RN. The Court form complaint states a single, unnumbered cause of action for "general negligence" in which she makes